



CHAPTER 58

An Act to make provision with respect to the
Department of Scientific and Industrial Research;
and for purposes connected therewith.

[2nd August, 1956]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Department of Scientific and Industrial Research (in this Act referred to as “the Department”) shall be placed under the charge of a Council for Scientific and Industrial Research (in this Act referred to as “the Research Council”) whose functions under this Act shall be exercised on behalf of the Crown and whose members shall be appointed by the Lord President of the Council after consultation with the President of the Royal Society. Reorganisation of scientific and industrial research.

(2) In the exercise of any powers or the performance of any duties conferred or imposed upon them by this Act, the Research Council shall comply with any directions which may from time to time be given to them by a Committee of the Privy Council for scientific and industrial research consisting of the Lord President of the Council and such other members as Her Majesty may from time to time appoint; and for the purposes of the Ministers of the Crown (Transfer of Functions) Act, 1946, the 9 & 10 Geo. 6. expression “Minister of the Crown” in that Act shall include that Committee. c. 31.

(3) The Research Council shall be charged with the organisation, development and encouragement of scientific and of industrial research and with the dissemination of the results of such research, and without prejudice to the generality of the foregoing provisions of this subsection may in particular—

- (a) encourage and support scientific research in universities, technical colleges and other institutions; and
- (b) establish or develop institutions or departments of institutions for investigation and research relating to the advancement of trade and industry; and
- (c) take steps to further the practical application of the results of scientific and of industrial research,

and may make grants for the purposes of any of their functions under this subsection; and in exercising their functions under this subsection the Research Council shall have regard, consistently with the national interest, to similar or related activities carried on by other persons.

(4) The Research Council may also make grants for post-graduate instruction in science or technology.

(5) The Secretary of the Research Council (in this Act referred to as “the Secretary”) shall be appointed by the Lord President of the Council after consultation with the Research Council, and the other officers and servants of the Department shall, subject to the consent of the Treasury as to number, be appointed by the Research Council; and the Secretary, officers and servants so appointed shall be paid such salaries and allowances as the Research Council may with the consent of the Treasury determine.

The Research
Council.

2.—(1) The Research Council shall consist of such number of members as the Lord President of the Council may from time to time determine, and the Lord President of the Council shall from time to time appoint one of those members to act as the chairman of the Research Council; and the chairman and other members of the Research Council shall hold and vacate their offices in accordance with the terms of their respective appointments.

(2) The Research Council shall be a body corporate and shall have an official seal, which shall be authenticated by the signature of the Secretary or of a person authorised by the Secretary, with the approval of the Research Council, to act in that behalf, and which shall be officially and judicially noticed.

(3) The Research Council shall have power to enter into contracts or agreements, to acquire and hold land or any interest in land, and to do all other things necessary or convenient for the purpose of their functions under this Act; and any land or

interest in land acquired by the Research Council shall be held on trust for Her Majesty for the public service:

Provided that any contract or agreement made by or on behalf of the Research Council otherwise than under seal shall be signed by the Secretary or by a person authorised by the Secretary, with the approval of the Research Council, to act in that behalf.

(4) The Research Council may appoint committees to exercise, or advise them on the exercise of, any of their functions under the foregoing section, and may appoint to any such committee persons who are not members of the Research Council, and the Research Council may also enter into arrangements for the performance of such functions on their behalf by other persons.

(5) There shall be paid to the members of the Research Council or of any committee appointed by that Council such remuneration as the Treasury may authorise.

(6) The procedure and quorum of the Research Council and any committee appointed by that Council shall be such as that Council may from time to time determine.

(7) The Research Council shall in each year send to the Committee of the Privy Council referred to in subsection (2) of the foregoing section a report of their proceedings during the preceding year, and the Lord President of the Council shall cause a copy of that report to be laid before each House of Parliament.

(8) Every document purporting to be an instrument made or issued by or on behalf of the Research Council and to be sealed with their seal authenticated in the manner provided by subsection (2), or to be signed as mentioned in subsection (3), of this section shall be received in evidence and be deemed to be so made or issued without further proof, unless the contrary is shown.

3.—(1) The remuneration of the members of the Research Council or of any committee appointed by that Council, the salaries and allowances of the Secretary and of the other officers and servants of the Department, and any expenditure incurred by the Research Council under this Act, shall be defrayed out of moneys provided by Parliament.

(2) Any payment by or on behalf of the Research Council under this Act shall be made through a person authorised by the Secretary, with the approval of the Research Council, to act in that behalf.

Revocations,
transitional
provisions, etc.

4.—(1) Any Order in Council in force immediately before the appointed day relating to the Committee of the Privy Council for scientific and industrial research and to an advisory council for the purposes of that Committee is hereby revoked, but any person serving immediately before that day as a member, the Secretary or an officer of that Committee shall be deemed to have been duly appointed in pursuance of this Act as respectively a member of the Committee of the Privy Council provided for by subsection (2) of section one of this Act, the Secretary of the Research Council, or an officer or servant of the Department.

(2) The Imperial Trust for the Encouragement of Scientific and Industrial Research is hereby dissolved, and any property vested in, rights enjoyed by, or liabilities incumbent on, that Trust immediately before the appointed day shall hereby vest in or devolve on the Research Council.

(3) Any property held for the purposes of the Department immediately before the appointed day by the Committee of the Privy Council set up under the Orders in Council referred to in subsection (1) of this section, and any rights or liabilities relating to the Department for which immediately before that day the said Committee held themselves responsible, shall hereby vest in or devolve on the Research Council.

Short title
and commence-
ment.

5.—(1) This Act may be cited as the Department of Scientific and Industrial Research Act, 1956.

(2) This Act shall come into force on such day as Her Majesty may by Order in Council appoint (in this Act referred to as "the appointed day").

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